

**12FPC326Q0013**  
**Title Search and Closing Services for**  
**California NRCS Easement Programs**  
**CONTRACTOR SOLICITATION QUESTIONS**

**LIST OF QUESTIONS:**

1. (Q) There appears to be a discrepancy between the pricing structure in the Statement of Work (“SOW”) and the Evaluation Criteria. The SOW identifies CLIN 1 as a “Preliminary Title Report,” while the Evaluation Criteria identifies CLIN 1 as a “Preliminary Title Search.” Can the Agency please confirm which pricing structure and deliverable controls are required for proposal submission?

*(A) The pricing structure in the Statement of Work and the Evaluation Criteria are the same - both require a title search to be completed and a preliminary title report to be produced. The cost should include the price for research, copies of all underlying documents, and the preliminary title report.*

2. (Q) Can the Agency clarify whether it is seeking: (a) a preliminary title search together with a separate standalone preliminary title report under CLIN 1, as reflected in the SOW; or (b) only the underlying title search documents under CLIN 1, with the Title Commitment to be provided separately under CLIN 2, as reflected in the Evaluation Criteria?

*(A) The Agency is seeking an initial preliminary title report that includes all the requested information in the Statement of Work - Section V. Description of Services, Item A. Preliminary Title Report. A legal survey will then be completed by a licensed surveyor providing a plat map and legal description of the conservation easement boundary and its access. As stated in the Statement of Work - Section V. Description of Services, Item B. Title Commitment and Closing Services, after receiving a survey and legal description of the conservation easement and its access from NRCS, the contractor will provide a title commitment, which will cover both the easement area and access for ingress and egress. No other title product may be substituted in place of the title commitment.*

3. (Q) If the SOW pricing structure governs, can the Agency clarify whether the “Preliminary Title Report” referenced under CLIN 1 is intended to be a non-insured informational report only, or whether the Agency expects the report to be issued in the form of a title commitment that is for informational purposes and not a commitment to insure?

*(A) The preliminary title report may be a non-insured report that provides all the requested information in the Statement of Work - Section V. Description of Services, Item A. Preliminary Title Report. The preliminary title report should be in a standard format, typical of those issued by a title company, that is designed to report on the status of title and list potential exceptions to insurance coverage. A title commitment must be provided after NRCS has completed a legal survey of the conservation easement and its access, and an easement-specific legal description has been provided.*

4. (Q) When the Agency references a “Preliminary Title Report,” is the Agency referring solely to the underlying search package and supporting documents, or is the Agency expecting an additional narrative report, cover letter, or other formatted title product to accompany the search materials?

*(A) The preliminary title report should be a stand alone report that includes all of the information requested in the Statement of Work - Section V. Description of Services, Item A. Preliminary Title Report. The preliminary title report should be in a standard format, typical of those issued by a title company, that is designed to report on the status of title and list potential exceptions to insurance coverage. A narrative report and cover letter may be provided, but are not required.*

5. (Q) The pricing structure states that the contractor may provide a published fee schedule in lieu of quoting a fixed Title Insurance Premium amount. Can the Agency confirm whether offerors may use the estimated purchase prices identified in the requirements attachment for each of the nine properties to calculate and propose the estimated title insurance premium costs? Additionally, please clarify whether the Agency prefers the premium pricing to be based on the estimated acquisition values or submitted as a separate, published rate schedule.

*(A) The estimated purchase price provided by NRCS for the conservation easement(s) may be used to determine an estimate of the title insurance premium cost. The Agency would prefer an estimate of the title insurance premium based on the estimated purchase price of the conservation easement; however, a published fee schedule may also be used.*